

Uttarakhand State Mineral Development Board Act, 2014

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State of Uttarakhand - Act

Uttarakhand State Mineral Development Board Act, 2014

UTTARAKHAND

India

Uttarakhand State Mineral Development Board Act, 2014

Act 01 of 2015

Published on 1 January 2015

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Uttarakhand State Mineral Development Board Act, 2014

(Uttarakhand Act

No. 01 of 2015

)

Last Updated 11th March, 2020

An Act to establishment the Uttarakhand State Mineral Development Board and for matters connected therewith or incidental thereto.

Be it enacted by the Uttarakhand State Assembly in the Sixty-fifth Year of the Republic of India as follows:

1.

Short title and commencement.

(1)

This Act may be called the Uttarakhand State Mineral Development Board Act, 2014.

(2)

it extends to the whole of State of Uttarakhand.

(3)

It shall come into force at once.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Board" means the Uttarakhand State Mineral Development Board constituted under section 3,

(b)

"Prescribed" means prescribed by the rules under this Act.

(c)

"Government" means the Government of the Uttarakhand;

(d)

"Member" means member of the Board and include its chairman,

(e)

"Legislative Assembly" means Legislative Assembly of the Uttarakhand.

3.

Constitution of the State Mineral Development Board and its jurisdiction.

(1)

There shall be established a State Mineral Development Board (hereinafter referred as Board) for the purpose of mentioned jurisdiction in sub section (2).

(2)

The jurisdiction of the Board shall be such as may be prescribed by the State Government.

4.

Chairman, Vice-chairman and members of the Board.

(1)

The State Government may make appoint a Chairman and a Vice chairman amongst from the elected members of the Legislative Assembly.

(2)

The State Government may make nomination of the following members in the Board.

(a) Infrastructure Development Commissioner

Ex officiomember

(b) Principal Secretary / Secretary Mineral

Ex officiomember

(c) Principal Secretary / Secretary Revenue

Ex officiomember

(d) Principal Secretary / Secretary Forest and environment

Ex officiomember

(e) Principal Secretary / Secretary Tourism

Ex officiomember

(f) Managing Director, Kumaon Mandal Vikas

Nigam, Garhwal Mandal Vikas Nigam and Uttarakhand Van Vikas Nigam

Ex officiomember

(g) Director, Geology and Mineral

Member- Secretary

Provided that the State Government may make appoint non Governmental members which numbers shall not more than three in special circumstances,

(3)

The tenure of the Chairman and Vice-chairman from the date of resuming his duties shall be the date of his tenure as a Legislative Assembly member.

(4)

The tenure of the members of the Board shall be such as may be prescribed.

5.

Meetings, quorum and regulation of other matters of the Board.

(1)

There shall be minimum three meetings conducted by the Board in a year and the Chairman of the Board shall authorized summon a meeting in Dehradun, Provided that as per necessity, the Chairman may make summon meeting in other places of the State.

(2)

The quorum of the meeting and regulation of other matters shall be such as may be prescribed.

(3)

The notice of the meetings and the minutes of Board shall be countersigned with the signature of the Member -Secretary.

6.

Pay and allowance of the Chairman, Vice-Chairman and non Governmental members.

- The pay and allowance and other terms of the Chairman, Vice- Chairman and non Governmental members shall be such as may be prescribed by the Government.

7.

Removal of the Chairman, Vice-Chairman and non Governmental members.

- The State Government may make remove from his post of the Chairman, Vice-Chairman and non Governmental members in such manner and in such terms as may be prescribed by the State Government.

8.

Maintenance of the Budget and other accounts of the Board and audit.

- The Budget and maintenance of the account of the Board and manner of audit shall be such as may be prescribed by the State Government.

9.

Power to make Rules.

(1)

The State Government may make rules to carry out rules the provisions of this Act.

(2)

Rules made by the State Government shall as soon as may be after it is made, be laid before the State Assembly.

10.

Repeal and Saving.

(1)

The Uttarakhand State Mineral Development Board Ordinance, 2014 (Ordinance no 04 of 2014) is hereby repealed.

(2)

Notwithstanding such repeal anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under the corresponding provisions of this Act.

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